

COMPLETE BOOK-LENGTH NOVEL EACH ISSUE

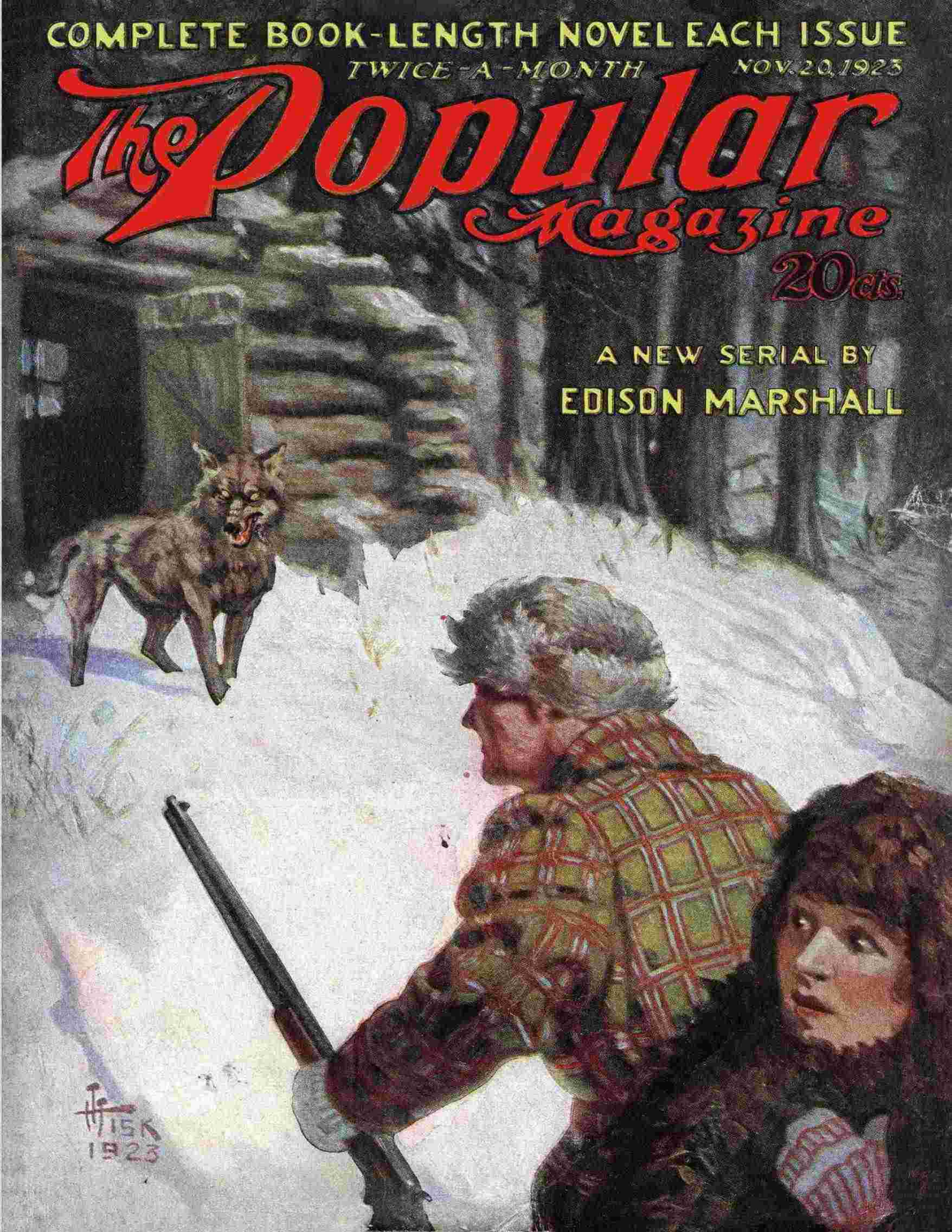
TWICE-A-MONTH

NOV. 20, 1923

The Popular Magazine

20cts

A NEW SERIAL BY
EDISON MARSHALL



H. K.
1923

COMPLETE BOOK-LENGTH NOVEL EACH ISSUE

TWICE-A-MONTH

NOV. 20, 1923

The Popular Magazine

20cts

A NEW SERIAL BY
EDISON MARSHALL



15K
1923

The Project Gutenberg eBook of The lost charm

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The lost charm

Author: Roy Norton

Release date: October 5, 2023 [eBook #71816]

Language: English

Original publication: New York: Street and Smith Corporation, 1923

Other information and formats: www.gutenberg.org/ebooks/71816

Credits: Roger Frank and Sue Clark

*** START OF THE PROJECT GUTENBERG EBOOK THE LOST
CHARM ***

THE LOST CHARM



THE LOST CHARM

By Roy Norton

Author of "Sleeping Dogs," "An Honest Troubador," Etc.

With the help of Goliath, David doubles in *Sherlock Holmes* and *The Good Samaritan*.

A small, wiry, red-haired man scrambled through the thick growth of brush, half slid and half plunged down a steep declivity and halted in the middle of the hard, worn road where he drew a deep breath, wiped the sweat from his face and consulted a huge silver watch.

"Quarter past ten and I sure ought to be in time for the down stage. It's seven miles from our camp here by this short cut, and I've done it in one hour and a half, and I win five from Goliath, and then from Hank," he muttered, after which he grinned cheerfully, rolled a cigarette, and planted himself in an attitude of repose on a roadside boulder. He took from his pocket a tiny parcel, unwrapped the newspaper protecting it and scanned the inscriptions on a half dozen letters as if to reassure himself that all had been correctly addressed, after which, for lack of anything further to do he sat and idly stared at the enormous panorama of mountains, forests, ravines and cañons that were visible from his perch and which formed a portion of the back edge of the Big Divide. The stillness was so profound that even the

trees had lost their almost inaudible whispering and his ears, finely attuned to nature, could distinguish the faint murmuring of the river that, hundreds of feet below, cheerily and busily made its way over and between myriad boulders. For fully fifteen minutes he sprawled listlessly before he lifted his head and listened attentively with his face turned up the white, stony highway.

“Here she comes,” he commented, and straightened himself, arose from the boulder and walked into the middle of the road where he stood waiting to intercept the oncoming vehicle. The noise grew louder, gained a crescendo of sound made up of clattering hoofs, a driver’s voice admonishing his horses, and the screeching of brake shoes grinding on iron tires, and then the down stage swung round a bend and as the pedestrian waved his arms up and down came to a halt. The driver was using heavy-weather language and beside him on the box a man who had lifted a sawed-off shotgun lowered it with a grunt and stared downward.

“Lord Almighty! David, we didn’t recognize you any too soon!” he exclaimed.

“And that’s the truth,” growled the driver, shifting in his seat. “You certainly did pick a mighty dangerous spot to flag us this time.”

“Why, what’s the matter with you fellers anyhow?” David demanded. “One of you grabs leather and the other a gun as if you thought you were about to be held up and was ready to shoot on sight.”

The driver and the express messenger grinned at each other and the latter rested his shotgun between his legs and as he reached for tobacco remarked, “Reckon you ain’t heard the news, pardner. It’s just two days ago since this same stage was stuck up almost on this exact spot. Right down there at the next bend, in fact, a hundred yards from here. I wasn’t along, but Bill here had no chance to put up a fight. Road agent got away with the treasure box.”

“Well, I’ll be hanged!” David exclaimed as if incredulous. “Who’d of thought it! Reckon that’s the first holdup around here for as much as ten years, ain’t it? How much did the feller get away with?”

“Only one package with seventy-five hundred dollars in it,” the messenger answered. “But the worst of it is the sheriffs don’t seem to have any idea at all who did it. They came up here within two hours, scouted around down there at the point, picked up the robber’s trail and followed it

clean up to the bare top of the ridge, got another little patch of it a half mile farther along and followed it down into the road and there it was lost. The feller was simply turning back toward Wallula Camp and for all that anybody knows may be there right now.”

“Didn’t bother the passengers, eh?” David asked thoughtfully.

“Wasn’t any, same as now,” the driver informed him. “And this gink was wise enough, too, so that he didn’t bother the United States mail. Didn’t want Uncle Samuel on his train along with the express company’s men and the regular officers, I reckon. But—by gosh! He knew how! Just like old times, it was! And me takin’ no chances, either. You can bet your head on that!”

“I can, Bill! I can!” David agreed, with a sarcasm that was wasted on the knight of the ribbons. “But what I stopped you for was to get you to mail this package of letters for me when you get down to the other end. Reason I happened to come here was that it’s just about seventeen miles less than carrying them into Wallula.”

The messenger reached down and took the letters, the driver remarked that he must be “gittin’ along” and then as he released the brake called over his shoulder facetiously, “If we get stuck up I’ll hand these over too. Reckon they ain’t worth as much as that seventy-five-hundred-dollar package the stick-up got and that had been shipped by Boss Shaughnessy! Haw! Haw! Haw!”

His laugh was drowned in the clattering of hoofs as the stage jumped forward, its wheels throwing up little clouds of dust and its momentum increasing as it reached the bend and disappeared around it. But David was left standing in the middle of the road with his mouth open and an expression of astonishment on his face.

“Shaughnessy—it was Tom Shaughnessy’s money that was looted, eh? Wonder why he sent—hang it all! I’ll bet there was something crooked in that holdup—just because it was Tom’s money! I wonder if there was real money in that package? Yes, of course there must have been, because the express agent wouldn’t have taken it on the blind. Um-um! Wonder if somebody who had been robbed by Shaughnessy, or some of his gang, didn’t know it was being shipped and played even?”

He thought of the numerous crooked deals and gouges perpetrated by the boss of Wallula and his associates, all of whom had once been driven from

the camp of Sky Gap by the more reputable citizens, and of the longstanding feud between this gang, himself, his lifelong partner Goliath, and his new partner Hank Mills, and grinned cheerfully as he thought, "Well, if any poor cuss has played even with Shaughnessy he's got my support. Luck to him!"

After again consulting his watch David leisurely struck back from the road, taking to the hillside in nearly the same place from which he had emerged, and climbed upward toward the crest. He paused after a few minutes and looked back toward the road that now lay considerably below and again his mind worked round the incident of the stage robbery.

"That would be the right place down there," he ruminated as his keen gray eyes scanned the white line that wound beneath. "And a man standing here would have had a grand-stand seat all to himself to watch the whole show. Or, if the chap that turned that trick had wanted to find a place to have a good look at the stage before he held it up he could have stood here, seen her as she came around that stretch up above, and then have had time to get down to that point and throw his gun on Bill as she came round that bend."

As if this thought proved interesting David began to scan the brush and ground near by and almost instantly stopped in an attitude of surprise and whistled a note of astonishment; for all unexpectedly he had blundered on to a place where a man evidently had rested for some time. Had David been asked if he were an expert trailer he would probably have denied such craft; but Goliath, his huge partner, would have asserted that there was no man on all that great range who could "read sign" like this same wiry, alert, active, ferret-eyed man who now began moving around in a bent attitude peering at every impression in the earth, at every crushed bunch of grass, and at every broken twig of brush. David seemed actually exultant when he found a stump of a cigar which had been chewed as if nervous teeth had worked upon it long after its fire had expired. A minute later he found the gaudy band, frowned at it for a time, and then put it into his pocketbook, wrapped the cigar in his handkerchief, pocketed that also, and resumed his search. He paused over each footprint and again brightened when he found one in a patch of moist earth and sand that was clear and distinct. He got to his hands and knees and taking an old letter from his pocket carefully cut it out into an exact pattern of the footmark and with a stub of a pencil marked

thereon every nail, noting little peculiarities of position as well as the fact that on the heel there was the imprint of a small iron plate almost new.

“That right boot heel was old, and the man had the plate put on because the heel was beginning to run over a little bit,” David muttered. “Maybe he was a little bowlegged. Anyhow, he treads heavier on the outer edge of his heel than on the ball of his hoof. Must find a mark of his left foot that’s clear.” He continued his trailing. Finally this search was rewarded and again he paused and made another pattern, reasoning as he did so, “Nope, the man wasn’t bowlegged, and the left heel had no plate and so doesn’t wear off like the right. That shows that most likely he hits the right heel harder because he either limps a little or has had that right leg or foot hurt some time so that it steps just a trifle different from the other one. One thing is sure; he’s a heavy man, and those marks were made by a town man’s shoes and not by any miner’s brogans or boots.”

Yard by yard he followed the telltale trail until he had worked it out thoroughly in his own mind that the unknown man had been restless and moved about somewhat aimlessly as if his wait and watch had lasted for some time. Then came another discovery, that the man had seated himself or crouched down behind a heavy clump of brush and remained there for some time, occasionally with restless movements as if intensely interested in observing something while at the same time taking precautions to remain in hiding. David had put himself into the same position and found that he could look through small openings in the brush which had been made larger by hands twisting off one or two of the branches, and that he had an exact bird’s-eye view of the spot in the road where the stage robbery had taken place. On making this discovery David once more uttered a tiny whistle and mused, “Uh-huh! That’s the way, eh? There were two of them in it instead of one, as Bill, the driver, and the deputy sheriffs think. Maybe the one up here had a rifle beaded down on the stage all the time so that if it came to any sort of a show-down he could pot Bill or bring down a horse to make the game certain.”

He devoted some time to seeking the marks where a rifle butt might have been rested and was disappointed because he could find nothing to bear out his reasoning. He still hoped to find some such indication, as he had made a complete detour and picked up the trails where the watcher had come and gone. They led away to the road below at a long angle and, proving that patience with keenness has its reward, David now made another most

important find. It was nothing less than a coin watch charm with the few links connecting it to the chain from which it had been broken, at sight of which David's eyes widened as if he had found something unbelievable.

"Lord! Who'd of thought it! Wish Goliath or Hank was here with me so that if it comes to a show-down I could have a witness to prove that I did find this thing, and that it was here that I found it," he muttered aloud, and at the sound of his own voice looked around as if startled, then after putting the charm and piece of chain in his pocketbook, carefully marked the spot where he had found them by notching the bottom of some brush with his pocketknife. He resumed the trail which led him down into the main road where still another cause for conjecture was exposed. This was that the trail had debouched almost exactly at a point where a smaller road branched off into the hills. This road David recognized as a private one that led to the Calora Mine, distant about two miles. The trail was lost, but David, now as keen as a bloodhound on a chase, turned off into the private road and followed it for some distance in the hope of again finding imprints of the crooked boot heel, but without success. He finally gave this up and was returning to the main road when he made another discovery and brightened eagerly.

"Horse and buggy been stopped here for some time," ran through his mind. "Didn't notice that as I went up because I was too busy looking for foot signs. Wonder who it could have been, and why? Couldn't be seen here from the stage road. Maybe it turned round and went back into the main road; or maybe it didn't come from the main road at all. Wish I could have found this before so many teams from the Calora had driven over it. Maybe, though, I can find some sort of tracks that'll show—"

He broke off and scanned the hard earth, rocks and dust inch by inch for a long time, and betrayed his disappointment when again he mentally commented. "Can't be sure about it. Maybe I'm imagining it. Everything so faint and beaten out; but it does seem to me that this buggy was driven up here off the main road, stopped, tied, stuck here for some time, then was turned round and driven back. The marks of the horse's fore hoofs show that, and look as if they might have been made just about two days ago, or—say—at about the same time the footprints I followed were made. If that's so, it accounts for a lot of things, and I dope it out about this way: Two men drove here and separated. One of them went straight back down the road, held up the stage, and after the job was done, slid up the hillside to throw

Bill off the scent; then after Bill and the stage had gone made his way back into the main road and finally returned here to the buggy. When the two who did the job first separated the man with the iron on his heel went and climbed up to that spot where he could watch and from which, if it came to a show-down, he could shoot. He didn't have to shoot, and probably made a bolt for it as soon as the stage had made a get-away, after which he also went down to the road and then back up here. The job was done and all the two men had to do was to drive away. The sheriff's posse, taking Bill's word that there was but one man, naturally picked up but one trail, followed it to where it came to the main road and was lost, and so entirely missed the trail left by the watcher a hundred yards away. Now which way did that buggy go and who was in it? It's my guess that I know one of the men that was in it and that it went straight back to Wallula where it came from, and from where it started probably mighty early on that same morning. Ought I to get word to the sheriff right away, or ought I to wait a day or two and see what turns up?"

For a long time he debated this and then made his decision for the latter alternative, after which he again took to the hills to return to his and his partners' claim and cabin.

Six days slipped away with the three partners waiting to hear any news concerning the stage robbery, chuckling over the information received in a roundabout way that no further developments had taken place, before the spell was broken by the chance arrival of a lank prospector from Wallula Camp who was invited to pass the night. He came opportunely as the partners were seating themselves for supper and Mrs. Hank Mills was cheerfully placing the food on the table. And almost the first question that he was asked was whether the deputy sheriffs had succeeded in learning who had "collared Shaughnessy's package."

"They have," he replied, an answer which caused all three of his male auditors to pause and look at him.

"And who was it, Tim?" David urged when the visitor showed signs of preferring food to recountal.

"Why, it was a chap named Ray. Tom Ray, I think his whole name is. Sort of a tenderfoot, so the boys say, although I don't know him pussonally. Comes from back in Iowa, or some of the corn States, and the pore durned fool must have got sort of discouraged because he hadn't found no pay streak up on Torren's Gulch where he had a claim, and is so hard up he has

to beg for credit to get even some beans and sow belly and—well—does a fool thing! Goes and sticks up the stage and—What do you think! You'd never guess how they came to nail him! No siree! Not in a hundred years! That's what they calls the mysterious circumstances!"

"Sheriff gets one of these anonymous letters that says the writer's a woman and that this gink Ray done her dirt, so she's goin' to squall. Says he robbed the stage and that he's got the money hid somewhere, most likely under a loose board under the bunk in his cabin where he's keepin' it till it's safe to spend some of it. Well, the sheriff himself comes up, so the boys says, and goes out to this tenderfoot's cabin, and Ray pretended he didn't have nothin' to hide, wouldn't think of robbin' anything or anybody, and swears he never done no woman any wrong because he'd never had nothin' to do with a woman since he came to Californy, and that as far as he knows there's never been a member of the female sex in his cabin since he built it. They say he put up grand indignation talk—probably tryin' to bluff it out, you see. But it didn't go. Not at all! Sheriff and his men goes in, pulls out the bunk, finds the board and there, in a nice tin cracker box, is Shaughnessy's money all done up in the package the way it was shipped. Ray hadn't even busted the seals. When it's shown to Shaughnessy he proves it's his because he'd taken down the numbers on the bills, which were new ones he'd got from somewhere."

"What? What's that? New bills, you say?" David exclaimed. "Then he must have got 'em from some bank, and the only bank in Wallula is one he's not friendly with, because we all know he had a row with the manager when it opened because said manager wouldn't play in on the Shaughnessy game. Besides, since when does any one suppose Tom Shaughnessy's a careful enough business man to take down the numbers on bills he's going to ship out by express?"

"Don't know about all that, but I'm just tellin' you what I heard and what's common talk about the camp."

Goliath, big, phlegmatic, and apparently wholly occupied with his food, lifted his dark eyes slowly and after waiting to see whether any one else had questions to ask or information to volunteer inquired, "Did you say this fellow Ray is working up on Torren's Gulch?"

"Yes. They say he's got a prospect up there."

"And he hadn't struck pay?"

“Not that any one knows of.”

Goliath resumed his meal and it was not until the conversation had again died away that he again offered an interrogation.

“Tim, didn’t Charley Evans have a claim on Torren’s Gulch, one time, a while ago? You ought to know that country. You were up there a while back.”

“Him? Charley Evans, you say? Sure, he had a claim up there. Number Four above; but he sold out to Pinder. Got a thousand dollars for it and I told him at the time I thought he was either lucky or a fool. Pinder’s got Number Three, too, come to think of it. And that makes me think of another thing, Shaughnessy’s got Number One and Two below and, if I’m not off my reckonin’, this chap Ray must have owned Number One above on the gulch. I don’t know who owns Discovery and Number Two above but I think it’s a man named MacPharlane, or something like that.”

He had his eyes on his plate, hence did not see the start of surprise or the scowl that crept over David’s face, nor the exchange of swift glances between David and Goliath. And suddenly, as if to divert the conversation, David began to talk volubly of something else. It was not until their guest had gone to his blankets and the partners were left alone that night that Goliath remarked, “Guess you’re thinkin’ about the same as I am, ain’t you, Davy—that there’s something fishy about that Ray deal, and that perhaps it was wise not to show too much interest or ask too many questions out there at the supper table?”

“You’ve got it, Goliath,” came the prompt reply. “And to-morrow you and I are going to take a long trip. Clear down to the county seat and to the county jail. If I’m not off that young feller Ray needs help about as badly as anybody ever did. It’s up to us to give it. Hank can stay here at the mine and keep things going till we get back and—maybe lie to anybody who comes along as to where we have gone. Get me?”

“Got you,” said Goliath, and then, “Good night.”

The lank prospector might have been surprised on the following morning had he known that within an hour after his departure David and Goliath were driving away over the hills in the opposite direction in a creaking old buckboard behind a pair of fat mules that philosophically and leisurely trotted as if they had knowledge of a long journey ahead.

It was nearly three o'clock in the afternoon when the partners left their mules in a feed stable, brushed the dust from their clothes, and after a brief stop at a restaurant presented themselves at the county jail and asked for the sheriff. And the sheriff, being an old friend of theirs, granted their request for permission to interview his prisoner and as a further evidence of confidence gave them the use of his private office.

"I've got just one condition, David," he said, "and that is that if you hear of anything I'd ought to know you'll tell me. Because, between us three, I can't get this thing quite straight in my own mind, and if this young chap Ray is a criminal my judgment of human nature isn't worth a cuss any more. I can't make myself believe, in spite of the fact that we've got him shut up, that he held up that stage; and that's the honest-to-God truth!"

Ray was brought into the office and started in surprise when he recognized his visitors. He had the look of a helpless and hunted animal and when David and Goliath thrust out their hands and said, "No use in asking questions, because we've come to help you," threatened to break down. At first he could tell them nothing that they did not already know and made the same protestations of ignorance and innocence that had been made at the time of his arrest.

"We've heard all that and believe you," David said at last. "But what we want to learn—who are your enemies?"

"But I haven't any, that I know of," Ray insisted. "I came West from Iowa and worked in two or three mines and watched and picked up all I could because I want to be a miner. Then I went to Wallula and was one of the first to stake a claim on Torren's Gulch, and since then have been too busy trying to find gold on it to fool around the camp, or make enemies. I've kept my mouth shut, and women don't come in my catalogue because"—he stopped, flushed, looked embarrassed and then boyishly added—"because the reason I came West was to try to make money enough to marry a girl I grew up with back there in Iowa. And now—my God! What will she think when she hears of this!"

He rested his head in his arms on the table by which he sat and for a moment gave way to despair.

"There! There! Don't take it to heart, son," Goliath rumbled, laying his huge hand on the prisoner's bent shoulders. "That girl is too good to hold anything against you if you're proved innocent, and my pardner and me are goin' to do that, or go the limit tryin' to do it."

But David sat apparently unmoved and with his eyes fixed absently on the window beyond.

“Come, come!” he said finally. “Pull yourself together and answer some more questions. Do you know a man named Shaughnessy, or one named Pinder, or one named MacPharlane?”

Ray looked up and appeared perplexed by this line of interrogation as he answered, “Why, yes. I know all three of them. They’re all of them good friends of mine. Mr. Shaughnessy wanted to buy my claim but I wouldn’t sell it at any price he would give. The best he would offer was a thousand dollars. Then Mr. Pinder came and told me confidentially that his ground, which is above mine, was no good and that he was going to sell to Shaughnessy for five hundred and advised me to sell out. After that Mr. MacPharlane came and I didn’t like him quite so well. He told me confidentially that Shaughnessy was a bad man to cross, and said that I ought to make friends with such a man rather than try to go against him in anything he was after, and intimated that Shaughnessy would make trouble for me if I didn’t sell. But of course I didn’t believe that and told him so in mighty plain language. He sort of lost his temper and let it out that the reason Shaughnessy wanted my claim was that he’s got those on both sides of my ground and, as I understand it, wants to get a solid unbroken string of claims which he’s going to sell to some capitalists back East, or make a stock company out of and sell stock; or something like that. But of course one can’t believe anything one hears from a fellow like that MacPharlane. I was too wise for that; and, besides, Shaughnessy doesn’t own them all because Pinder has a lot of ground—which proves that what MacPharlane said was a lie.”

David sat with a dry smile on his face as he listened to this, and Goliath merely scowled in open-mouthed astonishment.

“Yes, and that’s not all of it, either,” Ray asserted. “Mr. Shaughnessy sent me a letter that I got only yesterday in which he says that he is sorry to hear that I made such an awful blunder—because of course he thinks like every one else does that I’m guilty—but that, notwithstanding my arrest, and knowing that probably I’ll need money to defend myself, he is still willing to pay me a thousand dollars for my claim. You can’t call that unfriendly, can you?”

“Oh, no! Not at all!” David said with considerable sarcasm and then, winking over Ray’s head at his partner, got to his feet and said, “Well,

Goliath and I must be going now; but all I ask you to do is this, leave things to us and don't under any circumstances sell that claim unless we tell you to. You'd better give me that letter Shaughnessy wrote—for safe-keeping. I'll see him in a day or two and may want to talk the matter over with him. I reckon you can trust us, can't you?"

"I've heard so much about you two that I'd trust you with my life," Ray blurted as he produced the letter and handed it to David, who carefully pocketed it.

They gave him a few more words of encouragement, told him that if it came to money for defense they would find it for him, and after he had been returned to his cell by a deputy went outside to the waiting sheriff.

"Sheriff," said David, "we promised to tell you anything we could find out about this Ray case. Well, we're going to do it; but to save repeating it, we'd like to have you go with us to the prosecuting attorney's office so he can hear what we have to say at the same time. Is that good enough?"

"Sure. I'll go right over to Hillyer's office with you now," the sheriff said. "He'll be glad to see you two fellows any way, because he's a right smart admirer of yours and a good friend, isn't he?"

"Hope so," Goliath growled with a grin as he recalled a past episode in their career where the prosecuting attorney had turned a blind eye on their manipulation of a Sky Gap election which worked for an improvement in law and order. And he proved so when David sat and painstakingly detailed all that he had discovered and expounded his theory.

"Shaughnessy's got hold of some boobs back East who want to buy a mining property. The fact that there has been a little gold found on Torren's Gulch makes that the ideal ground to sell to any but the old-timers at the mining game who know the one color of gold in a pan doesn't make a paying mine, and that there are gulches which are as spotted as a fawn. Everything goes well until Shaughnessy tried to buy out this tenderfoot Ray, and because Ray's inexperienced and wants money enough to marry his best girl, he won't sell for a thousand dollars and Shaughnessy doesn't want to pay any more than he has to. He's got to have the ground to put the deal through. When he can't get it decently he turns around and goes after it crookedly, which is the way he knows best, anyhow.

"He gets that seventy-five hundred that can be identified, then he and one of his pals, either Pinder or 'Crook' MacPharlane, drive down there into

that side road with a buggy. Shaughnessy gets on the high point to signal when the stage is coming, and the other man sticks her up, and they go back and plant the money in Ray's cabin, then write the anonymous letter. The watch charm I found is the only thing that was bad for them. I recognized it the minute I found it because I've seen it on Shaughnessy's chain a hundred times. After our talk with Ray it was all plain. They framed up on the boy to get him out of the way and to buy his mine for a thousand dollars when he became so desperate and helpless that he'd sell his right eye to clear himself, and they do it under the bluff of friendship, damn 'em! Doesn't it look that way to you, Hillyer?"

For a long time the district attorney pondered and then said, "Yes, considering the past record of that gang, and the clean record of Ray, it does; but—I'm afraid that what you've learned, and what we know, doesn't constitute proof enough to either convict Shaughnessy and an unknown man or to clear Ray. And the worst of it is I don't at this moment see how we can get more evidence against Shaughnessy or actually learn who his confederate, the actual robber, was. They're so clever that they have absolutely covered their tracks. What do you suggest, David?"

"Why, just this. That you give me a week or ten days to do a little nosing around in my own way. Then, if I can get what you call 'evidence enough,' it's easy going. If I don't, why in any case you can state that, owing to disclosures which it's not necessary to divulge, and with the consent or concurrence, or whatever you call it, of the court, you are convinced of Ray's innocence and—turn him loose. You could do that, couldn't you?"

For a time the prosecuting attorney considered, and finally shrugged his shoulders as he said, "Yes, I could; but it might defeat me for my next election. However, that makes no difference. I wouldn't convict an innocent man if I could help it, even if I never again held a public office."

"Hillyer, you're a white man," David exclaimed as he stretched his hand toward the attorney, and Goliath stood up and rumbled as if the long silence was unusual with him and he now found it necessary to make a noise.

"Ten days then, you're to give, and I'm satisfied," David said as they turned and left the office.

"I don't see how you expect to get any more evidence than you've got already, Davy," the big man remarked after they were on their way to where their mules were stabled, preparatory to the start on the return journey.

“I don’t expect to get much,” David remarked with a grin that exposed his white teeth. Goliath looked at him steadily for a moment and then remarked: “Davy, you’re up to some dodge. I know it by the way you look.”

“Goliath, old boss, I am,” was all that the smaller man vouchsafed by way of explanation for the time being, and later actions proved that he had confessed the truth.

They drove away together; but on the following morning at a certain point where the trail split they separated, and Goliath, after a “So long! Good luck,” turned off on the home trail and David took to the road, philosophically, for the long tramp to Wallula.

David’s actions in Wallula were peculiar. He seemed intent on making numerous visits and always they were to men whom he knew he could trust and to none of them did he impart reasons for his sole request which invariably was, “I want to find out if Pinder and MacPharlane were in town on the night before that stage was robbed or on the day when the robbery took place, and I don’t want any one to know that I’m trying to get the information.”

The third man he confided in listened and made a calculation on his fingers.

“Nine days ago,” he remarked thoughtfully. “That would bring it on a Sunday night—week ago last Sunday. Um-m-mh! I think maybe—just maybe, I say—I can find out something from a chap I know. You see the Almorán Mine laid off three days just then on account of a broken main pump and the men were paid off. Most of ’em came to camp for a bust. One of ’em, Bill Wainwright, the foreman, is a poker fiend and he got pretty heavily trimmed in a game that lasted from nine o’clock Sunday night till ten o’clock Monday morning, and that game was in Big Pete’s saloon where most of the Shaughnessy gang hangs out. Get me?”

David wriggled with excitement.

“I get you so hard that if you’ll go and get a horse and ride over to the Almorán and find out what Wainwright knows, or doesn’t know about Pinder, MacPharlane, or Shaughnessy between the hours of nine o’clock Sunday night and ten o’clock Monday morning, I’ll pay the expenses, and you’ll be doing me a mighty big favor,” he ripped out with unusual vigor.

An hour later his friend had gone for a five-mile ride, and David, to all appearances was merely dawdling around the streets as if enjoying a spell

of laziness and idleness But inwardly he was impatiently counting the hours that must reasonably elapse before he could expect word from his volunteer investigator. He had ample time to be impatient, because it was not until after dusk that his friend returned and betrayed his presence by a light in his cabin window, toward which David hastened within a few minutes after it became visible.

“Well?” he demanded as he closed the door behind him.

“Two of ’em ain’t accounted for, but one of ’em is,” the messenger answered. “Yes, one of ’em sure is, and that’s Pinder. He sat in the game with Bill Wainwright, and Bill can remember the days and dates and times, you can bet, because Pinder won two hundred and twenty of Bill’s hard-earned money. And, what’s more, he wasn’t satisfied to let go of Bill after they knocked off at ten o’clock Monday forenoon, but insisted on takin’ Bill to breakfast and wanted him to have another sit-in to get his revenge. Nope. Bill and that guy Pinder didn’t part company till about noon when Bill pulled out for the mine. Now, about the other two. Bill didn’t see them either Sunday night or Monday mornin’; but if you want me to make some more inquiries, Dave, I’ll see—”

“No, use. Don’t bother about them,” David interrupted. “And don’t say anything to anybody about my ever having been nosing around. I’ve learned all I have to know for the present. And—I’ve got to go now. Going back to our mine first thing in the morning. Play even with you some time for this. I’ll say you’ve done me a good turn all right and I don’t forget.”

He was out of the door almost before he had finished his sentence and within half an hour, having an early start in view, was in his bed. Furthermore so early was that next morning’s start that it was not yet noon when he was driven up to the cabin which was his destination and was greeting Rosita Mills and complaining of hunger.

“And you may as well lay in plans, Rosy,” he said to Mrs. Mills, “to take care of the man from the livery stable down in Wallula, because he’s going to stay here the rest of the day and part of to-morrow with us. And after that—I got to talk to the others and think it over a little before I can say exactly what will happen.”

But what did happen was that on the following afternoon, timing themselves so that they would arrive in camp late at night, David and Hank drove away with the man from Wallula and Mrs. Mills knew that on the

next day Goliath was to make the same journey with the partners' mules and buckboard. Also that if she feared to be left alone she could accompany him and visit the camp for which she had no very pleasant recollections.

The "Real-Estate-and-Specialty-in-Mining-Properties" office of Thomas Shaughnessy stood at almost the end of the business portion of the main street, modestly, inconspicuously, as befitted a place of such importance that sooner or later all must visit it. It was later—much later—at nearly three o'clock in the morning when David visited it, while Hank kept a watchful eye up Main Street for the solitary night watchman who seldom strolled that far because frequent visits were not necessary, and—Wallula paid his wages because Shaughnessy had so dictated. David, being a very amateur burglar, had a bunch of door keys big enough to open the doors of a city, all of which he had purchased at the county seat. Patiently he tried about twenty keys before he found one that opened the rear door of Shaughnessy's office after which, carefully using an electric torch, he pulled down the shades over the front window and with an air of relief went into Shaughnessy's rear office and made straight for the letter files.

He paid not the slightest attention to the small safe in the corner, but did pay much to the letter files. For a time he began to fear that what he sought could not be found and then, with a chuckle of satisfaction, came to a compartment, made the correspondence therein into a roll, and pocketed it before returning the letter file to the exact position in which he had originally found it. Cautiously he put the shades up again, cautiously passed out of the rear door and with the same caution locked it. Five minutes later he and Hank were slipping through the back streets to the cabin of a friend which had been put at their disposal during its owner's absence, and there, safe, secure, unalarmed, they gloated over their theft.

Shaughnessy on the following day was unaware that he was under constant espionage; that the espionage became more rigid as dusk fell; that it continued while he ate his lonely meal in a restaurant and made a tour of various resorts where it was his custom to be seen for a short time; and, most of all, that there were certain individuals who were gleeful and declared that luck had played their way when he returned to his office alone at nine o'clock of the autumn evening. He was seated at his desk in his private office when the door opened almost noiselessly and he looked up to see two visitors. The first, a short, red-headed man, grinned sardonically as he said, "Hello, Tom. Glad to find you alone. Didn't expect us, I reckon."

“No, of course not, and don’t know that I care to see either of you, as far as that goes,” the boss growled, leaning back in his chair and wondering what misfortune was about to disclose itself. Always unexpected meetings with these two partners had been attended with misfortune. Misfortune seemed to have become a habit where they were involved.

“No use in getting nasty or fussed up about it, Tom,” the smaller man declared with the utmost amiability. “We never look you up because we like you. You know that.”

“Well, what have you come for this time?” Shaughnessy demanded after a moment’s hesitation in which he recovered himself and appeared as cool as if he had neither fears nor apprehensions.

“Why, we’ve come to help you out, just for a change,” David replied as he deliberately seated himself in a chair on the opposite side of Shaughnessy’s desk and motioned Goliath to close and guard the door. “We’ve come to sell you Number Two above discovery on Torren’s Gulch and—Shaughnessy, we’ve talked it over and we think you’re going to pay for it just”—he stopped, leaned forward and with a hard tapping finger to punctuate his sentence said—“seventy-five-hun-dred dollars!”

For an instant any connection between those figures and the amount lost in the stage robbery and so peculiarly recovered did not seem to penetrate Shaughnessy’s mind, and then, veteran gambler and expert dissembler as he was, his face turned slowly red, then white. His eyes lowered themselves under the motionless, fixed, and boring scrutiny of the steel-gray eyes that stared at him unblinkingly, menacingly, mockingly.

“What’s—what has—why seventy-five hundred dollars, and—and how do you happen to cut in on this deal anyhow? You don’t own that mine!” he exclaimed.

“We’re asking seventy-five hundred because we know you’ve got that much in cash down in the hands of the prosecuting attorney of this county marked ‘Exhibit A’ in the Ray case. Second, we’re asking it because we know that in a deal with the Curlew Mining Investment Company of No. 162 Dearborne Street, Chicago, you are putting this Number Two claim into the block of claims as your own and making the statement that it cost you seventy-five hundred dollars, even though you don’t own it and hadn’t a chance of buying it until to-night. We know that the company has been organized on a false basis to sell its stock just because you don’t and never did own this property, and that you and MacPharlane got so desperate that

in order to put the deal across and get Ray out of the way you even put up a fake stage robbery to land Ray in jail, where he'd fall for your game."

He leaned back triumphantly even as Shaughnessy lost his head, grew purple, sputtered as if he were about to be overcome by a stroke of apoplexy and roared with a brawling oath, "That's a lie. You can't prove any bunk like that and you know it!"

"Prove it? Can't prove it?" David retorted with an air of amused irony. "Why, I can hand stuff enough over to the prosecuting attorney of this county to have you in jail by noon to-morrow, and what's more—by Heaven!—if you don't close with us to-night my partners and I will see that you and MacPharlane are landed there to-morrow if we have to kill you and haul your carcasses in to show that we have you!"

He had half arisen to his feet, crouched forward and now ended his threat with the emphatic bang of his fist on Shaughnessy's desk.

There was a moment's silence in which the fat boss of Wallula gasped, drew back and then stared around furtively as he heard the sound of steps walking crisply and hollowly over the board walk outside.

"Hoping MacPharlane or Pinder will come and make an interruption, are you?" David asked, reading his mind. "Well, hope so too. We've got a man posted at the outer door who'll welcome either or both of them—with a gun. We don't allow for any chances in our game. We play to win, and you're a fool if you don't see that it's so and come across. You take my advice and sit down until I tell you what we're going to prove in the matter of that stage robbery if we have to hand you and our proof over to the county attorney."

Shaughnessy leaned back helplessly in his chair and muttered hoarsely, "All right. Shoot! What have you got?"

"We're going to prove that you got the bills for a plant and that you took the numbers and shipped them. And then that you and MacPharlane went down to where the stage was robbed in your buggy, which you drove into a side road, where you tied the horse. Then you went up to a high point a hundred yards this side and watched for the stage and Mac went on down to the bend and was ready when you signaled it was coming. He stuck it up and hit for the high ground and the barren rocks and then came down into the main road. You broke for the main road after the stage left in such a hurry that you even lost your watch charm. Here it is!"

Shaughnessy could not suppress either his astonishment or his anger. He bent far forward, glared at the bauble in his tormentor's hands and muttered almost inaudibly, "So you've got it, eh? No wonder I couldn't find it! Looked everywhere—"

David slipped the charm back into his pocket and with a grin went on, "Here's the butt of one of the cigars you smoke, and the band that came off it!" Again he made an exhibit. "But that isn't all. Here are two patterns of your shoes made from your footprints and—why, man! You've got the shoes on now with the plate on the right heel; put there because your right leg is a little game due to getting a shot near the knee before we ran you and your gang out of Sky Gap."

Shaughnessy who had been sitting aghast suddenly shifted his right foot backward as if to conceal his shoe, and David grinned as he had proof that his surmise had proven true.

"Why, I've even got a sheet of paper taken out of your office which is of the same kind, watermark and all, that the anonymous letter was written on, and it's the same kind you used when you wrote Ray that nice friendly letter renewing your offer of a thousand dollars for his claim. Also, Shaughnessy, I've got some similar goods to pull about MacPharlane which don't need to concern you unless I have to put it all in the hands of the county attorney, together, as I said before, with two prisoners, alive—or dead. Now, do we deal?"

For a long time Shaughnessy sat, discomfited, changing color, shifting his eyes, and now and then lifting them up to stare with unveiled hatred at the little man who sat silently observant across his desk.

"Damn you!" he growled at last, with an air of resignation, "you and that big pardner of yours are always butting in on my game and—and you'll do it once too often. I'll tell you that. But, I'll say this!" He paused and then with reluctant admiration added, "You never make a play that you aren't ready to raise to the limit and—I'll admit this—you seem to know how to make your bluffs good!" He pondered heavily for a full minute more and then with a sigh asked, "If I agree to this, and pay over the seventy-five hundred for that claim, does that clean the slate and does the matter drop as far as Hillyer goes?"

"It does. All we want to do is to protect that poor boob Ray, and we know how to do that without troubling you."

“Then it’s a go!” Shaughnessy said, as if relieved to have come to a decision.

“We’ll be with you all the time, Shaughnessy, all the time, until the money is paid over in cash,” David asserted sweetly. “In a way, we’ll act as if we were right fond of you—until then. Cash will talk. We’ll go with you to the county seat to-morrow to get Ray to make out the deeds to the claim and to give you his receipt for the seventy-five hundred in cash. And after that—you can go to hell your own way as far as we’re concerned!”

It may be that Hillyer still wonders whether the right course was pursued in the case of the last Big Divide stage robbery, but if so he has never said anything and merely smiles when asked why he released young Mr. Ray who, overcome by his great good fortune, pocketed the proceeds of his mining experience and is now said to be a prosperous farmer in the Middle West.

For a long time David never went near Wallula when he did not wear a watch charm which, if Mr. Shaughnessy happened to be in sight, he fondled and twirled with an exaggerated air of proud possession. Mr. Shaughnessy on such occasions invariably threatened to fall dead through an angry rush of blood to his bullet head, and needless to say, David invariably hoped he would!

Transcriber’s Note: This story appeared in the November 20, 1923 issue of *The Popular Magazine*.

*** END OF THE PROJECT GUTENBERG EBOOK THE LOST
CHARM ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.